

An Act

ENROLLED HOUSE
BILL NO. 3755

By: Sterling of the House

and

Stanley of the Senate

An Act relating to the Oklahoma Juvenile Code; amending 10A O.S. 2021, Section 2-3-103, as amended by Section 1, Chapter 242, O.S.L. 2022 (10A O.S. Supp. 2025, Section 2-3-103), which relates to juvenile detention facilities; directing the Office of Juvenile Affairs to provide certain medications to juvenile detention facilities under specified conditions; requiring the Office to make certain reasonable efforts; directing specified reimbursement subject to certain conditions; creating the Juvenile Detention Prescription Medication Fund; specifying type of fund and source of monies; stating purpose of fund; providing for expenditure of monies; providing for codification; and providing an effective date.

SUBJECT: Oklahoma Juvenile Code

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-3-103, as amended by Section 1, Chapter 242, O.S.L. 2022 (10A O.S. Supp. 2025, Section 2-3-103), is amended to read as follows:

Section 2-3-103. A. Provision shall be made for the temporary detention of children in a juvenile detention facility or the court may arrange for the care and custody of such children temporarily in private homes, subject to the supervision of the court, or the court may provide shelter or may enter into a contract with any institution or agency to receive, for temporary care and custody, children within the jurisdiction of the court. The Office of Juvenile Affairs shall not be ordered to provide detention unless

~~said~~ the Office has designated and is operating detention services or facilities.

B. County sheriffs of the arresting agency, their designee, any peace officer, private contractors under contract with the Office of Juvenile Affairs for transportation services, or juvenile court officers shall provide for the transportation of juveniles to and from secure detention for purposes of admission, interfacility transfer, discharge, medical or dental attention, court appearance, or placement designated by the Office. No private contract for transportation services shall be entered into by the Office unless the private contractor demonstrates to the satisfaction of the Office that such contractor is able to obtain insurance or provide self-insurance to indemnify the Office against possible lawsuits and meets the requirements of subparagraphs a, b and d of paragraph 4 of subsection C of this section. The Office of Juvenile Affairs shall not be ordered to provide transportation for a juvenile who is detained in or is destined for secure detention. The Office of Juvenile Affairs shall provide reimbursement to the entity transporting juveniles for necessary and actual expenses for transporting juveniles who are detained in or destined for a secure detention center as follows:

1. A fee for the cost of personal services at the rate of Seventeen Dollars (\$17.00) per hour;
2. Mileage reimbursement for each mile actually traveled at the rate established in the State Travel Reimbursement Act;
3. Meals for transporting personnel, not to exceed Ten Dollars (\$10.00) per meal; and
4. Meals for juveniles being transported, not to exceed Ten Dollars (\$10.00) per meal.

The Office of Juvenile Affairs shall process and mail reimbursement claims within sixty (60) days of receipt. Payments for services provided by a county sheriff's office shall be paid to the county and deposited in the service fee account of the sheriff.

C. 1. All juvenile detention facilities shall be certified by the Office of Juvenile Affairs. To be certified, a juvenile detention facility shall be required to meet standards for certification promulgated by the Board of Juvenile Affairs.

2. The board of county commissioners of every county shall provide for the temporary detention of a child who is or who may be subject to secure detention and may construct a building or rent space for such purpose. The boards of county commissioners shall provide for temporary detention services and facilities in accordance with the provisions of the State Plan for the Establishment of Juvenile Detention Services adopted pursuant to subsection D of this section and in accordance with subsections A and C of Section 2-7-608 of this title. The boards of county commissioners are hereby authorized to create multicounty trust authorities for the purpose of operating juvenile detention facilities.

3. In order to operate the juvenile detention facilities designated in the State Plan for the Establishment of Juvenile Detention Services and in subsections A and C of Section 2-7-608 of this title, the boards of county commissioners in the designated host counties shall:

- a. operate the juvenile detention facility through a statutorily constituted juvenile bureau subject to the supervision of the district court, ~~or~~
- b. operate the juvenile detention facility by employing a manager who may employ personnel and incur other expenses as may be necessary for its operation and maintenance, or
- c. contract with a public agency, private agency, federally recognized tribe, or single or multi-county trust authority for the operation of the juvenile detention facility. In the event any board of county commissioners contracts with a public or private agency or a federally recognized tribe, pursuant to the provisions of this section, the Office is authorized to directly contract with and pay such public or private agency or federally recognized tribe for provision of detention services. Any contract with a federally recognized tribe shall become effective upon approval by the board of county commissioners.

4. Management contracts for privately operated detention facilities shall be negotiated with the firm found most qualified by the board of county commissioners. However, no private management

contract shall be entered into by the board unless the private contractor demonstrates to the satisfaction of the board:

- a. that the contractor has the qualifications, experience, and personnel necessary to implement the terms of the contract,
- b. that the financial condition of the contractor is such that the term of the contract can be fulfilled,
- c. ~~that~~ the ability of the contractor to obtain insurance or provide self-insurance to indemnify the county against possible lawsuits and to compensate the county for any property damage or expenses incurred due to the private operation of the juvenile detention facility, and
- d. that the contractor has the ability to comply with applicable court orders and rules of the Office of Juvenile Affairs.

5. All counties to be served by a secure juvenile detention facility may, upon the opening of such facility, contract with the operators for the use of the facility for the temporary detention of children who are subject to secure detention; provided, however, a jail, adult lockup, or other adult detention facility may be used for the secure detention of a child as provided for in Section 2-3-101 of this title.

6. Expenses incurred in carrying out the provisions of this section shall be paid from the general fund of the county or from other public funds lawfully appropriated for such purposes or from private funds that are available for such purposes. A county may also issue bonds for the construction of detention facilities.

7. The operation of a juvenile detention facility by a county shall constitute a quasi-judicial function and is also hereby declared to be a function of the State of Oklahoma for purposes of the Eleventh Amendment to the United States Constitution. In addition, no contract authorized by the provisions of this section for the providing of transportation services or for the operation of a juvenile detention facility shall be awarded until the contractor demonstrates to the satisfaction of the county that the contractor has obtained liability insurance with the limits specified by The Governmental Tort Claims Act against lawsuits arising from the

operation of the juvenile detention facility by the contractor, ~~or~~, or, if the contract is for the providing of transportation services, the contractor has obtained liability insurance with the limits specified by The Governmental Tort Claims Act against lawsuits arising from the transportation of juveniles as authorized by subsection ~~A~~ B of this section.

D. The Board of Juvenile Affairs, from monies appropriated for that purpose, shall develop, adopt, and implement a plan for secure juvenile detention services and alternatives to secure detention, to be known as the State Plan for the Establishment of Juvenile Detention Services, which shall provide for the establishment of juvenile detention facilities and services with due regard for appropriate geographical distribution and existing juvenile detention programs operated by statutorily constituted juvenile bureaus. ~~Said~~ The plan may be amended or modified by the Board as necessary and appropriate. Until ~~said~~ such plan is adopted by the Board, the plan adopted by the Commission for Human Services shall remain in effect.

1. The Board of Juvenile Affairs shall establish procedures for the letting of contracts or grants, including grants to existing juvenile detention programs operated by statutorily constituted juvenile bureaus, and the conditions and requirements for the receipt of ~~said~~ such grants or contracts for juvenile detention services and facilities as provided in this section and Section 2-7-401 of this title. A copy of such procedures shall be made available to any member of the general public upon request. All such grants or contracts shall require the participation of local resources in the funding of juvenile detention facilities. A contract for services shall be based upon a formula approved by the Board which shall set the contract amount in accordance with the services offered and the degree of compliance with standards for certification.

2. The Board of Juvenile Affairs shall establish standards for the certification of detention services and juvenile detention facilities. Such standards may include, but not be limited to:

- a. screening for detention~~+~~L
- b. education and recreation opportunities for juveniles in secure detention~~+~~L and

- c. accreditation by the American Correctional Association.

As a condition of continuing eligibility for grants or contracts, secure juvenile detention services and facilities shall be certified by the Board within two (2) years of the date of the initial grant or contract.

E. 1. When a juvenile in the custody of the Office of Juvenile Affairs is ordered to be detained in a juvenile detention facility, the Office shall provide all medications prescribed for such juvenile that are in the possession of the Office to the operator of the juvenile detention facility no later than forty-eight (48) hours following the juvenile's reception at the facility, at no charge to the facility or operator.

2. The Office of Juvenile Affairs shall make reasonable efforts to coordinate the acquisition of prescribed medication through the juvenile's parent or guardian. The Office shall not be required to transport medication between parents or guardians and juvenile detention facilities.

3. Subject to the availability of funds, the Office of Juvenile Affairs shall provide reimbursement to juvenile detention facilities to offset the cost of necessary prescription medications for juveniles in detention. Reimbursements under this paragraph shall be limited to medications provided to juveniles detained pursuant to an order of a district court of this state.

F. The State Department of Health, with the assistance of the Office of Juvenile Affairs, shall establish standards for the certification of jails, adult lockups, and adult detention facilities used to detain juveniles. Such standards shall include but not be limited to: ~~separation~~

1. Separation of juveniles from adults; ~~supervision~~

2. Supervision of juveniles; and ~~health~~

3. Health and safety measures for juveniles.

The State Department of Health is authorized to inspect any jail, adult lockup, or adult detention facility for the purpose of determining compliance with such standards. No jail, adult lockup, or other adult detention facility shall be used to detain juveniles

unless such jail, adult lockup, or other adult detention facility complies with the standards established by the State Department of Health and is designated as a place for the detention of juveniles by the judge having juvenile docket responsibility in the county from a list of eligible facilities supplied by the State Department of Health.

The development and approval of the standards provided for in this ~~paragraph~~ subsection shall comply with the provisions of the Administrative Procedures Act.

~~F.~~ G. The State ~~Board~~ Commissioner of Health shall promulgate rules providing for the routine recording and reporting of the use of any adult jail, lockup or other adult facility for the detention of any person under the age of eighteen (18).

1. For the purpose of ensuring the uniformity and compatibility of information related to the detention of persons under age eighteen (18), ~~said~~ such rules shall be reviewed and approved by the Oklahoma Commission on Children and Youth prior to their adoption by the Board~~, and~~.

2. Records of detention shall be reviewed during each routine inspection of adult jails, lockups or other adult detention facilities inspected by the State Department of Health and a statistical report of ~~said~~ such detentions shall be submitted to the Office of Juvenile Affairs at least every six (6) months in a form approved by the Board of Juvenile Affairs.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-3-103A of Title 10A, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the Office of Juvenile Affairs to be designated the "Juvenile Detention Prescription Medication Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Office from legislative appropriations provided for the purpose of reimbursing juvenile detention facilities to offset the cost of necessary prescription medications for juveniles in detention as provided by subsection E of Section 2-3-103 of Title 10A of the Oklahoma Statutes. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office for the purpose provided for in this section. Expenditures from the fund shall be

made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 23rd day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____